



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAR - 7 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11223

EXPIRATION DATE: April 18, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: ICI Canada, Incorporated, Montreal, Quebec, Canada
(U.S. Agent - ICI Americas, Incorporated,
Wilmington, Delaware)
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation of a DOT Specification 105A500W tank car, containing a Division 2.3 material, meeting all DOT requirements except that the tank car has a defective liquid education valve which is equipped with a chlorine "C" kit. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.29(c)(2); 173.31(b)(3); 179.100-12(c); and 179.100-13.
5. BASIS. This emergency exemption is based on ICI Canada Incorporated's application of March 2, 1994, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Chlorine	2.3	UN 1017	N/A

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification 105A500W tank car, PROX 83515, with a defective "A" end liquid education valve. The tank car has been equipped with a chlorine "C" kit to prevent the emission of chlorine vapors.
 - b. MARKING - Tank car PROX 83515 must be marked "DOT-E 11223" in four inch letters on a contrasting background above the DOT specification number.

MAR 21 1994

Continuation of DOT-E 11223

Page 2

Cartridges, small arms	1.4S	UN 0012	II
------------------------	------	---------	----

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. Packaging is as prescribed in DOD's letter dated February 7, 1994 and loaded into or secured on military combat vehicles consisting of 14 M1A1 and 14 M2A2 armored vehicles.

8. SPECIAL PROVISIONS.

a. Shipment by rail under this exemption is authorized from Savannah, Georgia, to Fort Stewart, Georgia, utilizing the most direct route available.

b. Except when being operated for loading onto and off loading from the transport vehicle or vessel, each combat vehicle must be securely closed and locked with an effective locking device.

c. Rail Shipments made under the terms of this exemption must be accompanied by a DOD technical escort.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight and cargo vessel.

10. MODAL REQUIREMENTS:

Rail:

a. A copy of this exemption must be provided to the train crew involved in the transportation of the shipment under this exemption.

b. The Federal Railroad Administration must be notified of any accident, such as a derailment, that occurs during the rail segment of the movement. The notification must be made to:

Federal Railroad Administration
Office of Safety Enforcement, RRS-12
Hazardous Materials Division
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

MAR - 7 1994

Continuation of DOT-E 11223

Page 2

c. The manway protective housing cover, if remaining on the tank car, must be chained or otherwise fastened in the open position so that it cannot change position during transportation.

8. SPECIAL PROVISIONS.

a. Shipment of tank car PROX 83515 is authorized from Springfield Terminal Railroad's Rigby Yard, South Portland, Maine, to S.D. Warren Pulp Mill, Shawmut, Maine, a distance of approximately 80 miles utilizing the most direct route via the Springfield Terminal Railroad. Once empty the residue shipment is authorized from S.D. Warren Pulp Mill, Shawmut, Maine, to ICI Canada Works, Becancour, Quebec, Canada, a distance of approximately 150 miles utilizing the most direct route via Springfield Terminal Railroad and Canadian National Railroad.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS: None as a condition of this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

Any use or application of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

Vessel:

c. Vessel operations within the Port of Savannah, Georgia, including offloading of hazardous cargo and movement within the port area shall be subject to any additional requirements established by the Captain of the Port.

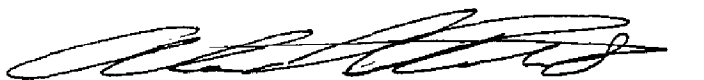
d. A copy of this exemption must be on board the vessel transporting the hazardous materials covered by this exemption and shall be available to personnel conducting the vessel offloading operations upon request.

11. COMPLIANCE. Failure by a person to comply with any of the terms and conditions of this exemption may result in its suspension or revocation and penalties prescribed by the Hazardous Materials Transportation Act:

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

Issued at Washington, D.C.:

MAR 21 1994



Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA, USCG

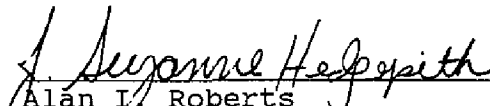
12. REPORTING REQUIREMENTS.

a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

b. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as derailment or exterior tank car damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR - 7 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA